



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

June 24, 2015

Memorandum for: Deputy Commissioner Trials

Re: Police Officer Ronald Gonzalez
Tax Registry No. 917701
Manhattan Court Section
Disciplinary Case No. 2012-7410

The above named member of the service appeared before Assistant Deputy Commissioner Amy J. Porter on May 8, 2014, August 21, 2014, September 4, 2014 and January 26, 2015, charged with the following:

DISCIPLINARY CASE NO. 2012-7410

1. Said Police Officer Ronald Gonzalez, assigned to the 77th Precinct, while off-duty, on or about May 6, 2012, in the vicinity of [REDACTED], within the confines of the 84th Precinct, Kings County, did wrongfully operate a motor vehicle while under the influence of an intoxicant.

P.G. 203-10, Page 1, Paragraph 5
NYS VTL SECTION 1192(3)

**GENERAL REGULATIONS
OPERATING A MOTOR
VEHICLE WHILE UNDER THE
INFLUENCE OF ALCOHOL OR
DRUGS**

2. Said Police Officer Ronald Gonzalez, assigned as indicated in Specification #1, while off-duty, on the date and location indicated in Specification #1, did wrongfully operate a motor vehicle while his ability was impaired by an intoxicant.

P.G. 203-10, Page 1, Paragraph 5
NYS VTL SECTION 1192(1)

**GENERAL REGULATIONS
OPERATING A MOTOR
VEHICLE WHILE UNDER THE
INFLUENCE OF ALCOHOL**

3. Said Police Officer Ronald Gonzalez, assigned as indicated in Specification #1, while off-duty, on the date indicated in Specification #1, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Officer refused to submit to a blood test. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5

GENERAL REGULATIONS

4. Said Police Officer Ronald Gonzalez, assigned as indicated in Specification #1, while off-duty, on the date indicated in Specification #1, did consume an intoxicant to the extent that said Officer was unfit for duty.

P.G. 203-04, Page 1, Paragraph 2

FITNESS FOR DUTY

5. Said Police Officer Ronald Gonzalez, assigned as indicated in Specification #1, while off-duty, on the date indicated in Specification #1, did consume an intoxicant to the extent that said Officer was unfit for duty, while armed.

P.G. 203-04, Page 1, Add'l Data

FITNESS FOR DUTY

6. Said Police Officer Ronald Gonzalez, assigned as indicated in Specification #1, while off-duty, on the date indicated in Specification #1, failed to carry his Department issued identification card. (*As amended*)

P.G. 204-15, Page 1, Paragraph 3

**SHIELDS/NAMEPLATES/
IDENTIFICATION CARDS**

In a Memorandum dated May 12, 2015, Assistant Deputy Commissioner Amy J. Porter found Police Officer Ronald Gonzalez Not Guilty of Specification No. 1 and Guilty of Specification Nos. 2, 3, 4, 5, and 6 in Disciplinary Case No. 2012-7410. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

I have considered the totality of the circumstances and issues in the misconduct for which Police Officer Gonzalez has been found Guilty of and deem that separation from the Department is warranted. However, instead of an outright dismissal from the Department, I will permit an alternative manner of separation from the Department for Police Officer Gonzalez at this time.

It is therefore directed that an *immediate* post-trial negotiated agreement be implemented with Police Officer Gonzalez in which he shall immediately file for vested-interest retirement, forfeit thirty (30) suspension days (previously served), forfeit thirty (30) suspension days (to be served), cooperation with counseling, ordered breath testing, be placed on one (1) year Dismissal Probation, forfeit all time previously served while on suspension, with and without pay, if any, waive all time and leave balances, including terminal leave, if any, and retire from the Department while on Modified Assignment.

Such vested-interest retirement shall also include Police Officer Gonzalez's written agreement to not initiate administrative applications or judicial proceedings against the New York City Police Department to seek reinstatement or return to the Department. If Police Officer Gonzalez does not agree to the terms of this vested-interest retirement agreement as noted, this Office is to be notified without delay. This agreement is to be implemented **IMMEDIATELY**.


William J. Bratton
Police Commissioner

SECOND ENDORSEMENT

EXECUTIVE OFFICER, POLICE COMMISSIONER'S OFFICE to First Deputy Commissioner, June 24, 2015. Please note the Police Commissioner's **DISAPPROVAL** of the Trial Decision and **APPROVAL** of the First Endorsement regarding Disciplinary Case No. 2012-7410 against Police Officer Ronald Gonzalez, Tax No. 917701. Forwarded for your necessary attention.



Cecil Wade
Inspector

CW/al

RECEIVED

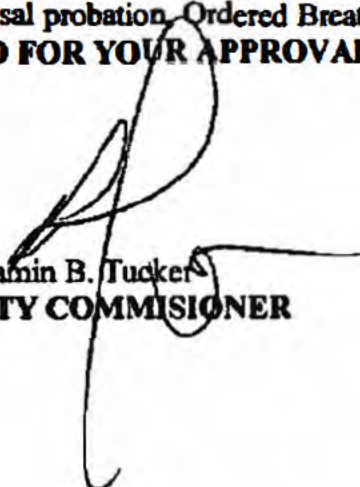
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FIRST ENDORSEMENT

First Deputy Commissioner to Police Commissioner, May 29, 2015. Contents noted. I reviewed the Trial Decision regarding Disciplinary Case #2012-7410 against Police Officer Ronald Gonzalez, Tax #917701. Assistant Deputy Commissioner, Trials, Amy J. Porter, found Police Officer Gonzalez Guilty of Specifications #2, #3, #4, #5 and #6, and Not Guilty of Specification #1, and recommended the penalty of dismissal. I do not concur.

The Respondent was found Guilty of the Charges and Specifications relating to Driving while under the Influence, and other acts of misconduct. On May 6, 2012, while off-duty, the Respondent operated his personal vehicle under the influence of an intoxicant in a single Motor Vehicle Accident of property damage only. Additionally, he was armed, failed to possess his Department identification card, and refused to submit to a blood test.

After considering the findings of fact in this Trial, and reviewing other Trial decisions of this nature, the recommended penalty is excessive in addressing the cited incidents of misconduct. The Respondent plead guilty twice in 2008 for being unfit for duty due to alcohol intoxication. Accordingly, I recommend that Police Officer Gonzalez immediately file for Vested-Interest Retirement while on Modified Duty status, forfeit thirty (30) pre-trial suspension days without pay already served from May 6, 2012 to June 4, 2012, thirty (30) suspension days to be served, forfeiture of all time served while on suspended with pay status and the forfeiture of all time/leave balance, including Terminal Leave, if any, immediately be placed on one (1) year dismissal probation, Ordered Breath Testing, and Cooperation with Counseling. **FORWARDED FOR YOUR APPROVAL.**


Benjamin B. Tucker

FIRST DEPUTY COMMISSIONER

BBT/jwu

APPROVED

JUN 24 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER



POLICE DEPARTMENT

May 12, 2015

-----X
In the Matter of the Charges and Specifications :

Case No.

- against - :

2012-7410

Police Officer Ronald Gonzalez :

Tax Registry No. 917701 :

Manhattan Court Section :

-----X
At:

Police Headquarters
One Police Plaza
New York, New York 10038

Before:

Honorable Amy J. Porter
Assistant Deputy Commissioner - Trials

APPEARANCE:

For the Department:

Jamie Moran, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent:

Marvyn Kornberg, Esq.
125-10 Queens Boulevard-Suite 12
Kew Gardens, NY 11415

To:

HONORABLE WILLIAM J. BRATTON
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

The above-named member of the Department appeared before me on May 8, 2014, August 21, 2014, September 4, 2014 and January 26, 2015, charged with the following:

1. Said Police Officer Ronald Gonzalez, assigned to the 77th Precinct, while off-duty, on or about May 6, 2012, in the vicinity [REDACTED], within the confines of the 84th Precinct, Kings County, did wrongfully operate a motor vehicle while under the influence of an intoxicant.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
NYS VTL SECTION 1192(3) OPERATING A MOTOR VEHICLE
WHILE UNDER THE INFLUENCE
OF ALCOHOL OR DRUGS

2. Said Police Officer Ronald Gonzalez, assigned as indicated in Specification #1, while off-duty, on the date and location indicated in Specification #1, did wrongfully operate a motor vehicle while his ability was impaired by an intoxicant.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
NYS VTL SECTION 1192(1) OPERATING A MOTOR VEHICLE
WHILE UNDER THE INFLUENCE
OF ALCOHOL

3. Said Police Officer Ronald Gonzalez, assigned as indicated in Specification #1, while off-duty, on the date indicated in Specification #1, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Officer refused to submit to a blood test. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

4. Said Police Officer Ronald Gonzalez, assigned as indicated in Specification #1, while off-duty, on the date indicated in Specification #1, did consume an intoxicant to the extent that said Officer was unfit for duty.

P.G. 203-04, Page 1, Paragraph 2 – FITNESS FOR DUTY

5. Said Police Officer Ronald Gonzalez, assigned as indicated in Specification #1, while off-duty, on the date indicated in Specification #1, did consume an intoxicant to the extent that said Officer was unfit for duty, while armed.

P.G. 203-04, Page 1, Add'l Data – FITNESS FOR DUTY

6. Said Police Officer Ronald Gonzalez, assigned as indicated in Specification #1, while off-duty, on the date indicated in Specification #1, failed to carry his Department issued identification card. *(As amended)*

P.G. 204-15, Page 1, Paragraph 3 – SHIELDS/NAMEPLATES/
IDENTIFICATION CARDS

The Department was represented by Jamie Moran, Esq., Department Advocate's Office, and Respondent was represented by Marvyn Kornberg, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Not Guilty of Specification No. 1 and Guilty of Specification Nos. 2, 3, 4, 5 and 6.

BACKGROUND

On the evening of May 5, 2012, Respondent was involved in a motor vehicle accident, while off-duty, at the six-lane intersection of [REDACTED], at about 2330 hours. Respondent testified that he had been on a date at a restaurant in the Village earlier that evening where he consumed two glasses of wine with his dinner. He drove his date home and then continued over the Brooklyn Bridge [REDACTED]. Respondent testified that he was familiar with driving this route [REDACTED] from Manhattan.

Respondent provided the sole account of the accident, as there was no testimony from anyone who saw him driving.¹ He testified that, as he was slowing down for a red light, he was cut off by another vehicle and swerved to avoid hitting it. As he swerved, he crashed into a light pole in the median of the intersection. (*Id.*). The hood of his [REDACTED] which was made of steel and aluminum, was crushed towards the inside of the vehicle and the bumper was also damaged. The engine remained intact. (Department's Exhibits [DX] 9A-9C). Respondent stated that the airbag immediately deployed upon impact, and he instantly felt severe pain in his left arm. Emergency medical personnel were the first to arrive at the accident scene, administering an oxygen mask and tending to Respondent's arm.

Police Officer Christopher Kirchoff, then assigned to the 84th Precinct, was the first member of the Department to respond. Kirchoff called his supervisor, Sergeant Cunningham, who arrived a few moments later. Cunningham requested that a sergeant from the 77th Precinct come to the scene to identify and confirm that Respondent was a member assigned to his precinct. Sergeant Troy Luis of the 77th Precinct arrived at the scene, identified Respondent and removed his firearm. Kirchoff, Cunningham and Luis all testified that they believed Respondent to have been intoxicated based on their interactions with him at the accident scene.

¹ Respondent's counsel argued that the testifying officers could not make determinations that Respondent operated a vehicle while impaired when they never saw him actually driving. Respondent, however, testified that he drove the [REDACTED] car, swerved and hit a light pole. Respondent's admission was supported by Sergeant Cunningham's testimony as to what Respondent told him at the scene. Therefore, the evidence demonstrated that Respondent was operating a motor vehicle.

After speaking with a duty captain by phone, Cunningham placed Respondent under arrest at 0029 hours. (Respondent's Exhibit [RX] A). He then called Highway and requested that an officer go to the hospital to administer testing.

Police Officer Richard Bennick of Highway 2 Intoxicated Driver Testing Unit ("IDTU") arrived at the hospital at approximately 0145 hours. At about 0204 hours, Bennick offered Respondent a blood test, in the presence of Cunningham, and then advised him of the consequences of refusal. Respondent refused the test twice. (DX 5). Respondent was not offered a Breathalyzer test. (*Id.*).

On June 11, 2013 in Kings County Criminal Court, Respondent pled guilty to the vehicle infraction of driving while impaired. (DX 1). Respondent testified that in entering the plea, he affirmed to the criminal court judge that on May 5, 2012 he operated a motor vehicle while he was impaired. He explained that he pled guilty for a "favorable" and "fast" disposition and that as a result of the plea, he received a violation, a lesser penalty than a misdemeanor, and was sentenced to pay a \$500 fine and attend a drunk driving awareness program. Respondent has paid the fine and attended the required program. He testified that he has not moved to vacate his guilty plea. (*Id.*).

FINDINGS AND ANALYSIS

Specification One: Operating a Motor Vehicle While Intoxicated

Respondent stands charged with wrongfully operating a motor vehicle while off duty and under the influence of an intoxicant.

The crime of driving while intoxicated requires a showing that that the driver "is incapable of employing the physical and mental abilities which he is expected to possess

in order to operate a vehicle as a reasonable and prudent driver.” *People v. McNamara*, 269 A.D.2d 544, 545 (2d Dep’t 2000), citing *People v. Cruz*, 48 N.Y.2d 419, 428 (1979), *appeal dismissed*, 446 U.S. 901 (1980). New York Vehicle and Traffic Law § 1192 (3) requires that no person shall operate a motor vehicle while in an intoxicated condition. Section 1192 (2) provides that an individual is guilty of driving while intoxicated *per se* where “such person has .08 of one per centum or more by weight of alcohol in the person’s blood as shown by chemical analysis of such person’s blood, breath, urine or saliva.”

The law does not, however, require any particular chemical or physical test to determine whether an individual was intoxicated or impaired. The Appellate Division upheld a finding that an individual was intoxicated based on police officers’ testimony that the defendant had glassy eyes, strongly smelled of alcohol and slurred his speech, combined with defendant’s failure to pass the field sobriety tests, “aberrant behavior in the police station” and refusal to submit to a breathalyzer test. *People v. Hasenflue*, 252 A.D.2d 829 (3rd Dep’t 1998); *see also People v. Pierce*, 268 A.D.2d 883 (3d Dep’t 2000) (holding that absent any chemical or laboratory testing, testimony from experienced police officers as to the defendant’s erratic driving, disheveled condition, including glassy eyes and the strong odor of an alcoholic beverage, failure of field dexterity tests, refusal to submit to a chemical test, unsteady gait and erratic behavior provided “abundant” evidentiary support for the jury’s determination that the defendant was guilty of operating a motor vehicle while intoxicated).

While no testing is required for a finding of intoxication, this Court has previously held that the standard to prove intoxication is a high one and that absent a breath or blood

analysis of blood alcohol content, Respondent must exhibit several physical indicia of intoxication. *See Case No. 82355/06* (November 2, 2011) (finding the Department failed to prove intoxication where, absent a breath test, officers noted some, but not several, physical indicia of intoxication, including erratic driving, a smell of alcohol and watery eyes); *Case No. 81394/05* (September 15, 2006) (declining to find that Respondent was intoxicated even where three supervising uniformed members of service observed that Respondent had an odor of alcohol on his breath, had glassy eyes and slurred speech).

Here, three uniformed members of service, Police Officer Kirchoff, Sergeant Cunningham and Sergeant Luis, observed Respondent shortly after the accident. Kirchoff, the first officer to respond, testified that during his brief interaction with Respondent he smelled alcohol on his breath. He did not observe Respondent's eyes, explaining that Respondent turned his head down and away after he was asked about a Department plaque in his window. Kirchoff testified that he believed Respondent to be intoxicated based on the smell of alcohol on his breath and Respondent looking away from him after he asked if Respondent was a member of the service.

Kirchoff's supervisor, Cunningham, arrived at the scene a few moments later and spoke with Respondent inside the ambulance. He testified that Respondent could not produce his Department ID, his shield or his New York State driver's license and was slow to respond to questions.

In his Fitness for Duty report, dated May 5, 2012, Cunningham checked boxes indicating that there was a "moderate" odor of alcohol on Respondent's breath, that Respondent's face appeared flushed, that his eyes were "glassy/watery" and that Respondent was disheveled. (DX 3). In handwritten notes on the form, he described a

“strong odor of alcohol emanating from [Respondent’s] person.” (*Id.*). In the Intoxicated Driver Examination report, dated May 6, 2012, Cunningham checked a box indicating that Respondent’s eyes appeared “apparently normal” but wrote on the form that his eyes were “glossy.”² (DX 4). He also checked that there was a “moderate” odor of alcohol. (DX 4). Based on these observations, Cunningham believed that Respondent was intoxicated.

Luis, a sergeant in Respondent’s precinct, was called to the scene to identify Respondent. He testified that Respondent’s speech was slurred, that his eyes were watery and very red, that there was a strong odor of alcohol emanating from his breath, and that he was yelling and combative. He noted the same in his Fitness for Duty Report dated May 6, 2012. (DX 6). Based on these observations, it was Luis’ opinion that Respondent was unfit for duty due to intoxication.

The final member of the Department to observe Respondent was Bennick of Highway 2 IDTU, who arrived at the hospital at approximately 0145 hours and offered Respondent a blood test at about 0204 hours, some two and a half hours after the accident. Bennick testified that he did not smell alcohol on Respondent’s breath. He stated that Respondent was lying down in a bed and that he did not crouch down near Respondent’s head, standing instead by his torso. On his Highway IDTU technician test report, Bennick checked “No” as to whether Respondent was under the influence of intoxicating beverages. (RX B). He further noted that Respondent’s eyes were red but that his speech was clear. Bennick explained that he opted to check “No” because he was unable to determine intoxication and the form does not provide a “Maybe” option. The

² While the official Department forms provide “glassy” as an option to check off describing Respondent’s eyes, Cunningham used the term “glossy” both in his handwritten notes on the forms and in his testimony.

interaction between Bennick and Respondent lasted approximately sixty seconds. It makes sense that Bennick's brief observations two hours later would differ from those who observed Respondent immediately following the accident.

All four officers testified in a credible and straightforward manner and there were no allegations that they harbored any animosity toward Respondent or had any motive to lie. Although three uniformed members of the service had a good faith and reasonable belief that Respondent was intoxicated, there are not enough indicia of intoxication to satisfy the high standard required to prove intoxication absent chemical or laboratory testing. No witnesses observed Respondent driving or walking, and, due to Respondent's injuries, no field balance or coordination tests were conducted. Weighing all the evidence and testimony against the high standard required to prove intoxication, there is insufficient evidence to support a determination that Respondent was intoxicated.

Accordingly, Respondent is found Not Guilty of Specification No. 1.

Specification Two: Operating a Motor Vehicle While Impaired

Respondent is also charged with the lesser offense of operating a motor vehicle while impaired.

A finding that a driver was impaired requires a lesser showing than intoxication - simply that the driver's ability to operate a motor vehicle was "impaired to some extent". *People v. McNamara*, 269 A.D.2d 544, 545 (2d Dep't 2000), citing *People v. Cruz*, 48 N.Y.2d 419, 428 (1979), *appeal dismissed*, 446 U.S. 901 (1980).

On June 11, 2013, Respondent pled guilty in Kings County Criminal Court to violating New York Vehicle and Traffic Law § 1192 (1) and, in offering the plea,

affirmed to the trial judge that he operated a motor vehicle while impaired and that he made the plea freely and voluntarily. (DX 1). He paid a fine and completed a drunk driving awareness program. He testified that he has not moved to vacate the plea.

It is well-settled that “a guilty plea is equivalent to a conviction after trial for issue preclusion purposes and that a guilty plea precludes relitigation in a subsequent civil action of all issues necessarily determined by the conviction.” *Merchants Mut. Ins. Co. v. Arzillo*, 98 A.D.2d 495, 504 (2d Dep’t 1984). Respondent had a full and fair opportunity to litigate any defenses he wished to raise in the criminal proceeding but waived his right to do so by choosing to take a plea. *Meader v. Spinnato*, 138 A.D.2d 578 (2d Dep’t 1988). Although Respondent testified that he only pled guilty to receive a favorable disposition, his guilty plea is deemed conclusive proof of the underlying facts. *S.T. Grand, Inc. v. City of New York*, 32 N.Y.2d 300 (1973); *see also 300 Gramatan Ave. Assocs. v. State Div. of Human Rights*, 45 N.Y.2d 176 (1978) (holding that the petitioner’s guilty plea alone was sufficient to support an Administrative Law Judge’s determination of guilt).

Even without Respondent’s previous guilty plea in criminal court, there is evidence to support a finding that Respondent is Guilty of Specification No. 2. In determining whether a driver’s ability to operate a motor vehicle was impaired, all relevant facts and circumstances may be considered. *See People v. Lizzio*, 178 A.D.2d 741 (3d Dep’t 1991). In *People v. Lizzio*, the 4th Department of the Appellate Division upheld defendant’s conviction for the lesser-included offense of driving while impaired where the defendant had been acquitted of driving while impaired. *See id.* at 742. The Court found the testimony of two police officers that defendant’s eyes were bloodshot,

that her speech was slurred, that she smelled of alcohol, and that, in their opinion, she was intoxicated, was legally sufficient to support the verdict despite conflicting evidence and testimony offered by defendant. *See id.*; *see also Case No. 81394/05* (September 15, 2006) (finding that Respondent was Guilty of driving while impaired, although Respondent was not determined to be intoxicated, where there was at least some physical indicia of impairment, such as slurred speech, glassy/bloodshot eyes and odor of alcohol on Respondent's person).

While the Department did not satisfy the high burden required for a finding of intoxication absent a blood or breath test, the evidence supports a finding of impairment. As outlined in the analysis of Specification No. 1, three uniformed members of service noted at least a moderate smell of alcohol on Respondent's breath, with two characterizing the smell as strong, and four officers described Respondent's eyes as glassy, watery and red. (RX B). Additionally, the supervising officer from Respondent's precinct, Sergeant Luis, testified that Respondent's speech was slurred and that Respondent became combative when asked if he was armed. Another supervising officer, Sergeant Cunningham, testified that Respondent was slow to respond to questions regarding the location of his shield, ID and driver's license.

The descriptions of his physical condition and demeanor in the minutes and hours following the accident, as outlined above, are consistent with a finding that Respondent's ability to operate a motor vehicle was impaired by his consumption of alcohol earlier that evening. Finally, Respondent's pleading guilty in criminal court to driving while impaired is deemed conclusive proof of his guilt before this tribunal. Accordingly, Respondent is found Guilty of Specification No. 2.

Specification Three: Refusal to Submit to Blood Test

Respondent stands charged with engaging in conduct prejudicial to the good order of the Department by refusing to submit to a blood test.

Respondent does not dispute that he refused to submit to a blood test, both initially and after being warned of the consequences of refusal, responding "No" and "Absolutely not." (DX 5). His counsel argued that he should be found Not Guilty of this charge because he had a valid reason for refusing the test: he had a prescription drug in his system that he believed would affect the test results. His counsel also argued that the consequences for Respondent's failure to submit to testing violated his constitutional rights.

Respondent testified on direct examination that he refused the blood test because there were "barbiturates in my system, and it just it wasn't in my best interest . . . after I had just been injected with that drug." On cross-examination, he clarified that he believed barbiturate to mean a "powerful painkiller" and therefore had believed Toradol was a barbiturate. Respondent claimed that he thought if he took the blood test he would get in trouble with the Department for having a drug in his system.

Respondent apparently made no mention of Toradol when he was initially questioned about his refusing testing at his GO-15 interview on June 20, 2013. At that interview, Respondent stated, "Yeah I mean, uh, at the time that it was asked of me, I was - I had an oxygen mask on my face. I had doctors trying to work on me. I thought my arm was broken and I was upset. I was like - - I felt upset that they were trying to blockade, you know, first responders trying to help me and they weren't interested in my physical well being. I felt - - and I was upset so I did refuse at that point." (DX 8).

Respondent cited no law supporting his argument that an individual is justified in refusing a test because of his medical condition. In New York, "any person who operates a motor vehicle . . . shall be deemed to have given consent to a chemical test of one or more of the following: breath, blood, urine, or saliva, for the purpose of determining the alcoholic and/or drug content of the blood. . . ." N.Y. V.T.L. § 1194. New York courts have been unwilling to consider medical reasons as justification for a driver's refusal of testing. The Court of Appeals rejected a driver's contention that she was physically unable to comply with breath testing due to emphysema and the testimony of her physician confirming that she had diminished lung capacity that would have made the test difficult. *Beaver v. Appeals Bd. of Admin. Adjudication Bur.*, 68 N.Y.2d 935 (1986); *see also Miracle v. N.Y. State DMV*, 303 A.D.2d 1063 (4th Dep't 2003) (finding a refusal even where driver testified that she was physically unable to comply with testing because of a medical condition).

Here, in contrast to *Beaver*, Respondent provided no testimony from his physician that he was physically unable to comply with testing or that testing would have impeded his medical treatment. Thus, even if he provided a medical reason, Respondent's argument would still fail as the above cases show that a refusal, even for medical reasons, is deemed a refusal.

Respondent's counsel could also cite no law to support his argument that if an individual believes submitting to a blood test might place him in the position of having to explain in subsequent litigation that he was legally administered a prescription drug, this belief should excuse him from the test. Whether Respondent believed he had a drug

in his system from the Toradol injection is not a valid justification for refusing a blood test.

Respondent's counsel further argued that it is unconstitutional for the Department to discipline an officer for refusing to submit to a blood test, asserting that in doing so, the Department forces an officer to take the test in violation of his constitutional rights against self-incrimination and not to be subject to unreasonable searches and seizures. He contended that Respondent should have the same rights within the Department that he has as a U.S. citizen. Counsel admitted that there is no present case law supporting this proposition.

This argument fails because the U.S. Supreme Court held in *Schmerber v. California* that a compulsory blood test to determine blood alcohol content does not violate a defendant's Fourth or Fifth Amendment rights. 384 U.S. 757 (1966). The Court held that the Fifth Amendment privilege against self-incrimination "protects an accused only from being compelled to testify against himself, or otherwise provide . . . evidence of a testimonial or communicative nature, and that the withdrawal of blood and use of the analysis . . . in this case did not involve compulsion to these ends." *Id.* at 764-65. As to the Fourth Amendment argument, the Court found that blood tests are minor bodily intrusions that do not constitute an unreasonable search and seizure and noted that they are a reasonable and effective means of determining the degree to which a person is under the influence of alcohol. *Id.* at 771-72. Since *Schmerber*, New York courts have consistently upheld that there is no constitutional right to refuse blood or Breathalyzer testing, only a limited statutory right to refuse under N.Y. V.T.L. §1194 that carries serious consequences, including the loss of one's license and the admission of refusal at

trial. *See People v. Berg*, 92 N.Y.2d 701 (1999); *People v. Shaw*, 72 N.Y.2d 1032 (1988); *People v. Thomas*, 46 N.Y.2d 100 (1978). Here, Respondent exercised that limited statutory right to refuse testing. Just as there are consequences to citizens for refusing under §1194, there are consequences to MOS in the Department who have taken an oath to follow the laws of New York.

In sum, it is undisputed that Respondent refused a blood test and then refused again after being advised of the consequences of refusal. Accordingly, Respondent is found Guilty of Specification No. 3.

Specification Four: Unfit for Duty and Specification Five: Unfit for Duty While Armed

Respondent is charged with consuming an intoxicant to the extent that he was unfit for duty and with being unfit for duty while armed.

While Respondent denies that he was intoxicated, the two supervisors³ who prepared the Supervisor's Fitness for Duty Reports (SFDR) determined that Respondent was unfit for duty due to alcohol consumption. (DX 3, 6). No evidence was presented at trial that the supervisors had colluded or had motive to lie or exaggerate. Their assessments were credible. *See Case No. 82355/06* (September 2, 2011) (finding Respondent unfit for duty based on a supervisor's assessment that he was impaired due to the consumption of alcohol and therefore unfit); *Case No. 81394/05* (September 15, 2006) (finding Respondent unfit for duty due to alcohol consumption, where there was no

³ Respondent's counsel initially argued that he was missing a copy of the SFDR which should have been filled out by a duty captain. The *Patrol Guide* requires that the duty captain fill out a SFDR, P.G. 206-12 page 1, para. 4. However, counsel withdrew this objection and affirmed on the record that he was in possession of the duty captain's SFDR. Only the referring supervisors' reports (Cunningham and Luis) were entered into evidence. (DX 3, 6). Cunningham testified that the duty captain had observed Respondent at the hospital.

breath or blood test, based on the determinations of four supervising officers, even where there were certain technical problems with the SFDR's); *Case No. 74742/99* (March 23, 2002) (finding Respondent unfit for duty due to overindulgence in an intoxicant based on the reports of two supervising officers). In both *Case Nos. 81394/05* and *82355/06*, Respondents who were found unfit for duty were found not guilty of driving while intoxicated, but were found guilty of driving while impaired.

Accordingly, Respondent is found Guilty of Specification No. 4. As it is undisputed that Respondent was armed, Respondent is also found Guilty of Specification No. 5.

Specification Six: Failure to Carry Department Identification Card

Respondent is charged with failing to carry his Department issued identification card in violation of *Patrol Guide* 204-15, pg. 1, para. 3.

It is undisputed that the Department was in possession of the ID card the day after the accident, May 6, 2012. (RX E). The issue of whether Respondent was carrying his Department issued ID card at the time of the accident is disputed.

Cunningham and Luis testified that Respondent could not produce his ID card at the accident scene. Respondent maintained that he turned it over to a PBA delegate at the hospital. That delegate, Officer Peter Stark, however, testified that he was never given Respondent's ID card.

Respondent's counsel argued that the Department should have produced a voucher indicating when the ID card was recovered and by whom. The Department argued that the officer's testimony should suffice as proof that Respondent had failed to

carry his ID card. Counsel further pointed to the Firearms Report confirming that the ID was recovered on May 6, 2012 as the only documentation in evidence regarding the ID card. (RX E).

Patrol Guide 206-17 provides that when an identification card is surrendered to the Department, the identification card must be forwarded with one copy of the Firearms report to the Shield and Identification Card Unit and the desk officer must obtain a receipt. Although no receipt specific to the ID card was put forth in evidence, the Firearms Report was completed, referencing the number of the ID card that had been removed. Two members of service credibly testified that Respondent did not surrender his ID card at the scene when asked to do so. Respondent's own witness, Stark, contradicted Respondent's testimony that he surrendered the card to Stark at the hospital, stating that Respondent never gave him an ID card.

Accordingly, Respondent is found Guilty of Specification No. 6.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. *See Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 18, 1996. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has been found guilty of driving while impaired, refusing to submit to a blood test, being unfit for duty, being unfit for duty while armed, and failing to carry his Department issued identification card.

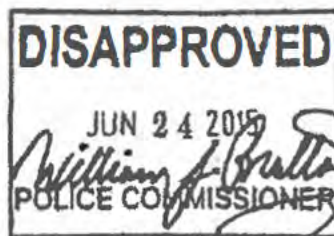
Despite testifying at trial that he had only previously been intoxicated once as a teenager, Respondent previously pled guilty to consuming an intoxicant to the extent that he was unfit for duty on two occasions in 2008. He also pled guilty to failing comply with an order to produce his ID card on one of those occasions. At that time, he negotiated a penalty that included one-year dismissal probation and alcohol counseling. Respondent was also placed on dismissal probation for an eighteen month period from July 2009 to December 2010.

Respondent has continued to exhibit behavior that demonstrates an inability to discharge his duties as a uniformed member of the service. Consistent with the Department policy of progressive discipline, it is recommended that Respondent be DISMISSED from the New York City Police Department.

Respectfully submitted.

Amy J. Porter pm

Amy J. Porter
Assistant Deputy Commissioner – Trials



**POLICE DEPARTMENT
CITY OF NEW YORK**

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER RONALD GONZALEZ
TAX REGISTRY NO. 917701
DISCIPLINARY CASE NO. 2012-7410

Respondent was appointed to the Department on July 18, 1996. His last three annual evaluations were as follows: he received an overall rating of 3.5 "Highly Competent/Competent" in 2014 and 2012 and a 4.0 rating of "Highly Competent" in 2013. He has received three medals for Excellent Police Duty.

[REDACTED]

Respondent was placed on Level II Discipline Monitoring from April 23, 2008 to February 10, 2009 due to poor performance. He was placed on dismissal probation (Level III) from July 15, 2009 to December 9, 2010.

Respondent has two prior formal disciplinary adjudications. In 2001, Respondent forfeited thirty vacation days for selling two firearms and failing to submit a Department Acquisition/Disposition Form to the Department within ten days, as required.

Regarding an incident that occurred in February 2008, Respondent pled guilty to being involved in a physical altercation, consuming an intoxicant to the extent he was unfit for duty, being unfit for duty while armed and carrying an unauthorized off-duty firearm. Regarding an incident that took place in July 2008, Respondent pled guilty to being discourteous to a sergeant, refusing to comply with a lawful order to turn over his Department ID card, threatening to assault another individual, and consuming an

intoxicant to the extent that he was unfit for duty. As a result of the 2008 incidents, which were combined into one plea negotiation, Respondent was placed on one-year dismissal probation, forfeited sixty suspension days, forfeited fifteen vacations days and agreed to cooperate with counseling and breath testing.

For your consideration.

A handwritten signature in black ink, appearing to read "Amy J. Porter" with a stylized flourish at the end.

Amy J. Porter

Assistant Deputy Commissioner - Trials